

24STCV28646 24STCV28646

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-18

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Case Number: 24STCV28646 Hearing Date: August 18, 2026 Dept: 512

HEARING

DATE: Tues., August 18, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Allstate

Northbrook Indemnity Co., et al. v. COMPL.

FILED: 10-31-24

Spriggs,

et al.

CASE NUMBER: 24STCV28646

NOTICE:

OK

PROCEEDINGS: MOTION TO CONTINUE TRIAL AND ALL TRIAL RELATED DATES

MOVING PARTY: Defendants Scott Spriggs

and Kinkle Rodiger & Spriggs, P.C.

RESP. PARTY: Plaintiffs Allstate Northbrook Indemnity Company and

Allstate Insurance Company

MOTION TO CONTINUE TRIAL

(CRC, Rule 3.1332)

TENTATIVE RULING:

Defendants Scott

Spriggs and Kinkle Rodiger & Spriggs, P.C.'s second Motion to Continue Trial and All Trial-Related Dates is GRANTED.

Jury Trial is CONTINUED TO March

22, 2027 at 9:30 a.m. Final Status Conference is scheduled for March 12, 2027 at 9:30 a.m.

Counsel are required to appear in person at the Final Status Conference.

Parties are ordered to follow Department 512's courtroom rules for trial preparation.

Moving parties are ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on August 5, 2026 ☐
Late ☐ None

REPLY: Filed
on August 11, 2026 ☐
Late ☐ None

ANALYSIS:

I.
Background

On October 31, 2024, Plaintiffs Allstate Northbrook Indemnity Company and Allstate Insurance Company (“Plaintiffs”) filed the instant action against Defendants Scott Spriggs and Kinkle Rodiger & Spriggs P.C. (“KRS PC”) (“Defendants”) and Does 1-50, alleging causes of action for Legal Malpractice and Breach of Fiduciary Duty. (Compl., p.1.)

On February 5, 2025, Defendants filed an Answer.

On February 26, 2026, the Court granted Defendants’ Ex Parte Application to continue trial and related trial deadlines. (2/26/26 Order.)

On May 21, 2026, new defense counsel associated in as counsel for Defendants.

On July 14, 2026, Defendants filed a first Motion to Continue Trial and All Associated Cut-Off Dates.

On July 17, 2026, Defendants filed the instant second Motion to Continue Trial and All Associated Cut-Off Dates (the “Motion”).

On August 5, 2026, Plaintiffs filed an Opposition.

On August 11, 2026, Defendants filed a Reply.

II.

Legal Standard & Discussion

Parties’
Arguments

Defendants move to continue the trial date as they had new defense counsel associate into the case in May 2026; essential discovery is not yet completed; and there has been

only one prior continuance in this matter that was not “due to” Defendants. (Motion, Cole Decl., Exhs. 1-16.) Further, Defendants assert they will be prejudiced and suffer irreparable harm absent a trial continuance because they will not be able to obtain material evidence and the amount in controversy in this matter is significant – namely, “Plaintiffs claim Defendants are responsible for over \$80 million in damages.” (See Motion, p. 10.)

In Opposition, Plaintiffs

request the Motion be denied on the grounds that there has already been one trial continuance in this matter; the prior trial continuance was requested by Defendants; Defendants’ voluntary change of counsel does not constitute good cause; and Defendants created any delay complained of in the Motion. (Opp., pp. 1-4.) Further, Plaintiffs highlight the close proximity of the trial date; that the length of the requested trial continuance is excessive; and alternative means exist to address Defendants’ concerns, such as an extension of the discovery cut-off date or a motion to reopen discovery on narrower issues. (Opp., pp. 5-6.) Finally, Plaintiffs state they will suffer prejudice by a continuance because it will disrupt Plaintiffs’ ongoing trial preparation and extend “the period during which they are without recovery, fading witness memories, and increasing litigation costs.” (Opp., p. 6.)

In Reply, Defendants

emphasize arguments raised in the Motion. Additionally, Defendants state that, since the Motion was filed, the parties have engaged in substantial communications regarding outstanding discovery and continued engaging in discovery in this matter; however, “as of the date of this Reply, Defendants have been able only to take a partial deposition of one witness: Allstate’s primary claim handler on the underlying matter, Suzanne Howard.” (Reply, p. 5.) Further, the Reply states as follows:

Between August 5

and August 7, Plaintiffs’ counsel responded to Defendants’ counsel’s efforts to schedule a telephonic meet and confer with several discourteous emails. (Suppl. Cole Decl., ¶ 16, Ex. 14.) On August 7, 2026, Plaintiffs served objections to all of the remaining depositions Defendants had noticed, of witnesses Suzanne Monrean, Julia Manning, Rosie Hinojosa, and John Connolly. On August 10, 2026, counsel for the parties met and conferred telephonically regarding these issues. During this conversation, Plaintiffs finally affirmed that they would produce their witnesses, irrespective of whether they were current or former

employees, without requiring Defendants to serve deposition subpoenas, and dates were discussed. (Suppl. Cole Decl., ¶ 17, Ex. 15.) There are 11 depositions to be completed in the immediate future. (Id.)

(Reply, p. 5.) Further, the Reply highlights that the Opposition does not identify any reason why trial should not be continued, and the Reply clarifies that it is undisputed that Defendants requested the prior trial continuance but the reasons for the continuance were necessitated by Plaintiffs' lack of cooperation in discovery. (Reply, pp. 5-6.) Finally, the Reply states defense counsel has been diligent in preparing for trial; the continuance is reasonable; Plaintiffs continue to delay producing witnesses for depositions; and the length of the trial continuance is reasonable.

Analysis

California Rules of Court, Rule

3.1332, subdivision (c) states: "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The Court may grant a continuance only on an affirmative showing of good cause requiring the continuance." Circumstances that may indicate good cause include: the excused unavailability of a party, trial counsel, or witness; the substitution of trial counsel if the substitution is required in the interests of justice; the addition of a new party in certain circumstances; a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or a significant, unanticipated change in the status of the case. (Cal. Rules of Court, subd. (c)(1)-(7).)

The Court may also look to the following factors in determining whether a trial continuance is warranted: (1) proximity of the trial date; (2) whether there was any previous continuance, extension, or delay of trial due to any party; (3) the length of the continuance requested; (4) the availability of alternative means to address the problem that gave rise to the motion; (5) the prejudice that parties or witnesses will suffer as a result of the continuance; (6) if the case is entitled to preferential trial setting; (7) the court's calendar; (8) whether trial counsel is engaged in another trial; (9) whether all parties have stipulated to the continuance; (10) whether the interests of justice are best served by the continuance; and (11) any other fact or circumstance relevant to the fair determination of the motion or application. (See generally Cal. Rules of Court, rule 3.1332, subd.

(d)(1)-(11).)

Here, the Court finds the Motion makes an affirmative showing that good cause exists for a trial continuance in this matter. The Motion and evidence before the Court demonstrate defense counsel has acted diligently since associating into the case in May 2026; there is outstanding discovery unlikely to be completed by the currently set trial date despite diligent efforts, including allegedly 11 depositions; and there does not appear to be substantial prejudice to Plaintiffs should a trial continuance be granted. (See Motion, Cole Decl.; Reply, Cole Decl., p. 16; Opp.) Thus, the Court finds that a trial continuance would give the parties time to complete discovery and adequately prepare for trial.

Further, the Court notes that the continuance request is limited, the interests of justice are best served by a continuance, and Plaintiffs will not suffer prejudice from a brief trial continuance.

For these reasons, the Motion is GRANTED. Trial is continued to March 22, 2027 at 9:30 a.m.

III.

Conclusion & Order

Based on the foregoing, Defendants Scott Spriggs and Kinkle Rodiger & Spriggs, P.C.'s second Motion to Continue Trial and All Trial-Related Dates is GRANTED.

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